

#	Case Name	Tentative
		not prejudice the opposing party (other than losing the advantage of the default), only slight evidence will justify an order granting such relief. (<i>Id</i>; <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 695.) Here, the default was entered against Defendant on November 12, 2025. (ROA 13). Defendant filed this motion with the court on April 20, 2026, within the six-month limit defined in Section 473. (ROA Nos. 21, 23, 25.) In the declaration, Defendant explains the circumstances that led to the default. Plaintiff in opposition does not present any evidence of prejudice. Given the liberal policy of favoring a determination on the merits, the court finds that Defendant has met the standard for relief from default under section 473(b). Accordingly, the motion is GRANTED. Defendant is to file and serve the proposed Answer within 10 days. The order to show cause is discharged. A case management conference is scheduled for March 15, 2027 at 9:00 a.m. in this department. Defendant shall give notice of this ruling.
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56.	Horste v. SC Investments LLC 2023-01302494	The motion by plaintiff Angelle Horste to lift the arbitration stay, withdraw claims from arbitration, and impose monetary sanctions, pursuant to Code Civ. Proc., § 1281.98, is DENIED. This matter was ordered to arbitration pursuant to a post-dispute arbitration agreement (ROA 76), to which Code Civ. Proc., § 1281.98 does not apply. (<i>Trujillo v. J-M Manufacturing Co., Inc.</i> (2024) 107 Cal.App.5th 56, 70 ["We conclude the Legislature intended to limit section 1281.98's applicability to arbitration arising from a predispute agreement"]; disapproved on separate grounds by <i>Hohenshelt v. Superior Court</i> (2025) 18 Cal.5th 310, 349; see also Cal. Rules of Court, Rule 8.1115, subd. (e)(2) ["After decision on review by the Supreme Court, unless otherwise ordered by the Supreme Court ... a published opinion of a Court of Appeal in the matter ... is citable and has binding or precedential effect, except to the extent it is inconsistent with the decision of the Supreme Court or is disapproved by that court"].)

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		As a separate and independent ground, the motion is also denied, based on defendant SC Investments LLC's showing that the failure to pay arbitration fees resulted from inadvertence and/or excusable neglect. (<i>Hohenshelt v. Superior Court</i>, <i>supra</i> at 333-335; Rios Decl., ¶¶ 3-5.) This denial is without prejudice to a subsequent motion in the event the arbitration cannot be resumed and/or completed. (See <i>Brock v. Kaiser Foundation Hospitals</i> (1992) 10 Cal.App.4th 1790, 1796 [upon conclusion of the arbitration proceedings, if there is no award on the merits, "the action at law may resume to determine the rights of the parties"]; see also <i>id.</i> at 1808 [failure to cooperate in arbitration "does not mean that a party to an arbitration proceeding has no remedy against dilatory tactics," but "may move in the arbitration proceedings to terminate them for failure to pursue the arbitration claim with reasonable diligence"]; <i>Cinel v. Christopher</i> (2012) 203 Cal.App.4th 759, 769 ["because the arbitration had been terminated and the trial court did not confirm, correct or vacate Christopher's petition, but instead dismissed the petition, the stay terminated and the trial court properly set the matter for trial"].) The order to show cause is DISCHARGED. The court sets a status conference regarding the arbitration for January 15, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to submit a joint statement concerning the arbitration. Defendant SC Investments LLC shall give notice of this ruling.
57.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	The motion by Petitioner / Judgment Creditor Matthew R. Silver for a charging order against Respondent / Judgment Debtor Curtis R. Wright's partnership interests in Serviam by Wright LLP and Serviam Law, LLP, is GRANTED. (Code Civ. Proc., §§ 708.310, 708.320; Corp. Code, § 16504.) The court issues a charging order against Judgment Debtor's transferable partnership interests in (1) Serviam by Wright LLP and (2) Serviam Law, LLP, in the unsatisfied amount of the Judgment, which as of July 1, 2026 is \$1,573,363.37, representing the principal balance of the Judgment, plus accrued interest and costs. The court finds that Judgment Debtor has waived the direct service requirements of Code Civ. Proc., § 684.020, by opposing this matter on the merits, and failing to show prejudice from service on counsel. (<i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 697-698 [service defects found waived